

PARENTAL ALIENATION AND MISINFORMATION PROLIFERATION

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Since parental alienation syndrome (PAS) was identified in the 1980's, there has been a remarkable amount of misinformation regarding both PAS and parental alienation (PA). These falsehoods were published in professional journals, presented at conferences, and distributed through internet websites and blogs. This article summarizes five examples of published misinformation regarding PAS/PA. Each case study includes: the false statements that were published in the medical, psychological, or legal professional literature; the names of the individuals who made the false statements; and the steps taken to refute the falsehoods and correct the record. The writers of the misinformation were from Sweden, Tunisia, Spain, and the United States, which illustrates the international scope of PAS/PA. In one example, the misinformation reached the U.S. House of Representatives and was almost included in a formal resolution adopted by that body. The article discusses various underlying causes of the high level of polarization in PAS/PA scholarship. The article also proposes steps that both mental health and legal writers can adopt to reduce the destructive polarization that has occurred. In general, however, clinicians, forensic practitioners, and legal professionals should remain vigilant when they read articles or listen to presentations about topics that might be considered controversial.

Key Points for the Family Court Community:

- Since 1985, a remarkable amount of misinformation regarding parental alienation and parental alienation syndrome has been published in professional literature and presented at conferences.
- When misinformation occurs in journal articles and books for mental health and legal professionals, readers may want to contact the editor and publisher in order to correct the record.
- When misinformation occurs in presentations at conferences for professionals, audience members may want to challenge the presenter to correct the false statements.
- When practitioners have conflicting opinions regarding a topic, a constructive activity might be for them to write an article together for publication, in which they clarify where they agree and where they disagree.

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I. INTRODUCTION

Parental alienation syndrome (PAS) was identified by Richard Gardner in 1985.¹ Subsequent writers generally referred to parental alienation (PA) rather than PAS. For example, a comprehensive book regarding this topic—which referred to PAS—was *Parental Alienation Syndrome: The International Handbook of Parental Alienation Syndrome: Conceptual, Clinical and Legal Considerations*. That book, which was published in 2006, was edited by Gardner, Sauber, and Lorandos. However, subsequent books by the same editors and authors referred to PA rather than PAS: *Parental Alienation, DSM-5, and ICD-11*; *Parental Alienation: The Handbook for Mental Health and Legal Professionals*; and *Parental Alienation – Science and Law*.

For purposes of this article, PAS and PA are meant to be synonymous. PAS specifically refers to the “syndrome” of eight characteristic behaviors identified by Gardner: the child’s campaign of denigration against the alienated parent; frivolous rationalizations for the child’s criticism of the alienated parent; lack of ambivalence; the independent-thinker phenomenon; reflexive support of the preferred parent against the alienated parent; absence of guilt over exploitation and mistreatment of the alienated parent; borrowed scenarios; and spread of the child’s animosity toward the alienated

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parent's extended family.² Other writers have adopted a broader perspective in order to better understand the alienated child. For example, Kelly and Johnston said, "[t]o adequately diagnose and effectively intervene when a child is presented as alienated, a systems framework that assesses the multiple and interrelated factors influencing the child's response during and after separation and divorce is critical."³

Despite different points of view, almost every scholar who addresses these topics would agree with this generic definition of both PAS and PA: "a mental condition in which a child—usually one whose parents are engaged in a high-conflict separation or divorce—allies himself or herself strongly with an alienating parent and rejects a relationship with the target parent without legitimate justification."⁴

Indeed, critics and detractors of PAS/PA routinely lump these concepts and terms together. For example, a *Judge's Guide*, published by the National Council of Juvenile and Family Court Judges, referred to "[t]he discredited 'diagnosis' of 'PAS' (or allegation of 'parental alienation')." ⁵ Also, Meier explained, "[i]n short, the reality is that whatever some researchers may say about the differences between PAS and PA, in practice, PA is rarely understood to be different. Indeed, some proponents of alienation theory simply cite to both PAS and PA without distinction."⁶ Not long ago, Benjamin and his colleagues made the same point: "[p]roponents of PAS have developed different names for it over the past two decades, including more recently parental alienation disorder (PAD) and parental alienation relational problem. This syndrome or disorder has been promoted by some, but it is strongly disputed by many others"⁷ Thus, the concepts of PAS and PA have much more in common than they differ, and both terms are used in this article.

Throughout the 35-year history of this field of study, there has been a remarkable amount of false information about both PAS and PA. This false information was published in professional journals, presented at conferences, and distributed through internet websites, blogs, and mass media. It was propagated by individuals who hoped to discredit the concept of PAS/PA. It is not known whether those individuals acted out of ignorance (citing and repeating *misinformation*) or deliberately spread false material (*disinformation*) regarding this serious mental condition.⁸ The proliferation of misinformation is very important for forensic practitioners, attorneys, and judges because it may be introduced in court through the testimony of expert witnesses, to the detriment of children, families, and the judicial process itself.

This level of misinformation—the persistent distribution of fabrication masquerading as scientific inquiry—may be unique in the history of psychiatry and psychology. This article summarizes five examples of published misinformation regarding PA. The examples come from Sweden, Tunisia, Spain, and the United States, which illustrates the international scope of PA. Each case study includes: the false statements (in *italics*) that were published in the medical, psychological, or legal professional literature; the names of the individuals who made the false statements; and the steps that were taken to refute the falsehoods and correct the record. This article illustrates both successful and unsuccessful attempts at publishing revised and corrected statements. The steps taken to revise and correct false statements regarding PA were undertaken by members of the Parental Alienation Study Group (PASG), a not-for-profit organization that educates the general public, mental health clinicians, forensic practitioners, attorneys, judges, and policy makers regarding PA.⁹

II. SWEDEN – A MAJOR PUBLISHER OF LAW BOOKS

Norstedts Juridik, a leading international publisher of legal tools and services, states on their website: "[o]ur large network of writers and lecturers today consists of over 1,000 well-reputed legal experts. It is their profound subject knowledge and experience that forms the basis for the quality of the literature we publish"¹⁰ Their network of writers includes Christian and Eva Diesen, husband and wife, who are both lawyers. In 2013, Diesen and Diesen published *Övergripping mot kvinnor och barn: den rättsliga hanteringen (Abuse of Women and Children: The Legal Management)*. This book contains a paragraph that is particularly problematic:

*The suspicion that mothers, usually in connection with custody disputes, accuse the former partner of sexual abuse of the children ... has produced a quasi-scientific theory called PAS, parental alienation syndrome. The theory, launched by the American child psychiatrist Richard Gardner (an adherent of pedophilia)....*¹¹

It is, of course, incorrect to refer to PAS as “a quasi-scientific theory.” There are hundreds of articles in peer-reviewed journals, chapters, and books that relate qualitative, descriptive research regarding PAS/PA. There are a smaller number of published quantitative research studies.¹² It is also incorrect, and perhaps libelous, to refer to Richard Gardner as “an adherent of pedophilia.” That false allegation was created by taking Gardner’s writings out of context, in that he wrote about pedophilia and incest, and said that those behaviors have historically been widespread. Gardner stated that as a historical fact, but his writings certainly did not indicate that he approved the practice of pedophilia. Claiming that Gardner was “an adherent of pedophilia” is an example of *character assassination*, a phenomenon studied extensively by sociologists and political scientists.¹³

In response, formal complaints were submitted to the publisher, Norstedts Juridik, and to Stockholm University, where Christian Diesen was employed. Both the publisher and the University considered the formal complaints, but declined to take any corrective action. At Norstedts Juridik, Olov Sundström, the chief executive officer of the company, responded to our formal complaint with this email:

We have read your letter carefully and we have also consulted with several external counsels, specialized in freedom of expression matters. We can conclude that it falls within the Swedish freedom of expression to publish the views expressed by the authors of the book “Övergrep mot kvinnor och barn.”¹⁴

At Stockholm University, the complaint was initially taken up by a Committee for Preliminary Investigation, and subsequently by the Vice-Chancellor of the University; at both levels of review, no action was taken. Emma Svennerstam, Legal Counsel for the Vice-Chancellor, explained:

The Vice-Chancellor agrees with the Faculty that the allegation is mainly based on criticism against the PAS theory. The reported text passage is neither the result of a dishonest inclusion nor exclusion of data or material, but the opinion of the author. This should be clear when reading the text passage, since there are no references included. To express criticism in this way does not fall within the scope of what can be regarded as scientific misconduct under the University guidelines.¹⁵

In Sweden, apparently, the principle of freedom of expression is very broad and the standards for scholarly publications are very liberal. That is, academic writers can say anything they want—including outright falsehoods—as long as they are simply stating “the opinion of the author.” Of course, false statements can be either intentional or accidental; both possibilities are incorrect. In many places, the principle of freedom of expression is broad and the standards for scholarly publications are liberal. Many academic journals and presses give wide latitude to contributors, even if their views are clearly contrary to the weight of opinion in their area of expertise, and academic institutions are very reluctant to edit the comments of professors. Thus, it may be challenging to correct this type of misinformation regarding PA.

III. TUNISIA – A PRESTIGIOUS FORENSIC SCIENCE JOURNAL

Bernet, Gregory, Reay, and Rohner published “An Objective Measure of Splitting in Parental Alienation: The Parental Acceptance–Rejection Questionnaire” in the *Journal of Forensic Sciences*.¹⁶ The article was initially published online on August 17, 2017. Within a few days, a physician in Tunis, Tunisia, Vincenzo Puppo, M.D., wrote a letter to the editor of the *Journal*, in which he commented on the article by Bernet et al. and made multiple false statements. The editor of the *Journal* invited Bernet to respond to the statements made by Puppo, and ultimately Puppo’s letter to

the editor¹⁷ and Bernet's response¹⁸ were published back-to-back in January 2018. In his letter, Puppo stated the following misinformation:

*Many scholars of psychology and the law have examined the literature regarding PAS: they have encountered a lack of empirical studies published in peer-reviewed journals. ... Parental alienation syndrome is not supported by any evidence-based data.*¹⁹

In reply, the Parental Alienation Database, an online resource located at the library at Vanderbilt University School of Medicine, contains about 800 references to qualitative research and 200 references to quantitative research regarding PA. Also, Saini, Johnson, Fidler, and Bala reviewed fifty-eight research studies regarding PA and they concluded: "There is remarkable agreement about the behavioral strategies parents can use to potentially manipulate their children's feelings, attitudes, and beliefs in ways that may interfere with their relationship with the other parent. The cluster of symptoms or behaviors indicating the presence of alienation in the child can also be reliably identified."²⁰ Thus, it is incorrect to say there is "a lack of empirical studies published in peer-reviewed journals."

*[Parental alienation syndrome is] unknown in medical settings, unquoted in medical books Parental alienation syndrome has been discredited by mental health professionals....*²¹

In reply, it is easy to show that PA/PAS has been addressed and discussed in books intended for medical, psychiatric, and psychological professionals, as seen in: the *Principles and Practice of Child and Adolescent Forensic Mental Health*;²² *Salem Health Psychology and Mental Health*²³; the *Cultural Sociology of Divorce*;²⁴ the *Handbook of Forensic Psychology*;²⁵ the *Wiley Encyclopedia of Forensic Science* (2015);²⁶ the *Encyclopedia of Clinical Psychology*;²⁷ *Kaplan and Sadock's Comprehensive Textbook of Psychiatry*;²⁸ and the *Principles and Practice of Forensic Psychiatry*.²⁹ Thus, it is incorrect to say that PAS/PA is "unknown in medical settings, unquoted in medical books."

In the case of Vincenzo Puppo, the false statements made in his letter to the editor were thoroughly refuted by a response in the same issue of the *Journal of Forensic Sciences*.

IV. SPAIN – A JOURNAL REGARDING YOUTH SERVICES

In 2015, Miguel Clemente and Dolores Padilla-Racero, psychologists practicing in Spain, published a problematic article in *Children and Youth Services Review*. The authors reported a research study, which involved asking children suggestive questions, and they stated, "We conclude that Gardner's ideas about parental alienation syndrome, and in particular the ease of parental manipulation of children, were not empirically verified. We recommend that this concept not be used in the legal system."³⁰ In their article, Clemente et al. made several false statements regarding PAS: "The truth is that PAS, from a scientific point of view, is virtually unknown."³¹ In reply, a popular software program that is used for citation analysis of psychosocial publications yields 1,000 citations (including articles in the professional literature, books, and book chapters) when asked to search for the phrase "parental alienation."³² One thousand citations are the maximum that the program allows for a search.

*Thus, if a child states that she does not want to see her father, this is explained as fruit of the mother's manipulation, and the mother would be accused of being a manipulative mother. However, the hypothesis that the child is being physically or even sexually abused by her father is not contemplated and therefore not investigated.*³³

In reply, it is flatly incorrect to say that experts who evaluate a child for PAS or PA do not consider the possibility that the rejected parent actually abused the child. Gardner himself published an article specifically on that topic, "Differentiating Between Parental Alienation Syndrome and Bona

Fide Abuse–Neglect.”³⁴ Starting with the seminal article in which he defined PAS, Gardner said, “I have introduced this term to refer to a disturbance in which children are obsessed with deprecation and criticism of a parent—denigration that is unjustified and/or exaggerated.”³⁵ More specifically, Gardner later said, “When bona fide abuse does exist, then the child’s responding hostility is warranted and the concept of the parental alienation syndrome is not applicable.”³⁶

*The term, “campaign of denigration” assumes that the child is lying.*³⁷

In reply, this statement by Clemente et al. is a classic straw man argument, in that they present a false explanation of PA theory and then they criticize the explanation that they have created. No experienced evaluator would “assume” that a child is lying simply on the basis of that one behavioral symptom.

In response to this deeply flawed article by Clemente et al., several members of PASG prepared a detailed response that was published several months later in *Children and Youth Services Review*.³⁸ Bernet, Verrocchio, and Korosi thought that the Clemente et al. article had so many errors that it should be withdrawn from publication. Although the editor and publisher of *Children and Youth Services Review* did not agree with that recommendation, they did quickly publish the critique by Bernet et al. of the article by Clemente et al. When misinformation regarding PA appears in a mental health or legal journal, a well written response that is promptly published should reduce the repetition of false information. The critique of Clemente et al. is a good example of how serious errors in the professional literature can be counteracted to some extent, but they cannot always be erased.

V. AMERICAN PSYCHOLOGICAL ASSOCIATION

Family Evaluation in Custody Litigation: Promoting Optimal Outcomes and Reducing Ethical Risks, Second Edition, was published by the American Psychological Association (APA) in January 2018 as part of the American Psychological Association’s Law and Public Policy series. This book contained several serious misstatements regarding PAS/PA. These statements did not simply represent differences in professional opinions; they were blatantly false and misleading. The authors of the book were G. Andrew H. Benjamin, Connie J. Beck, Morgan Shaw, and Robert Geffner. Perhaps the most egregious misinformation in this book published by the APA was:

*[Parental alienation syndrome] further assumes that a child’s strong alignment with one parent while rejecting a relationship with the other parent is without legitimate justification, including situations in which there is child abuse (Bernet, von Boch-Galhau, Baker, & Morrison, 2010).*³⁹

That one sentence, which reflected badly on Bernet et al., contained two serious misstatements. First, PA theory does not “assume” that a child’s contact refusal “is without legitimate justification.” Every competent writer on this topic knows that PA is one possible explanation for a child’s contact refusal, but not the only possibility. Bernet et al.—in the article cited by Benjamin et al.—stated that clearly:

We use the phrase *contact refusal* for the behavior of the child or adolescent who adamantly avoids spending time with one of the parents. Contact refusal is simply a symptom that could have a number of possible causes, one of which is parental alienation. This terminology is similar to *school refusal*, which is simply a symptom that could have a number of possible causes.⁴⁰

Second, it was irresponsible for Benjamin et al. to state that the concept of PA includes “situations in which there is child abuse.” Every competent writer on this topic knows that scores of authors—starting

with Gardner in 1985⁴¹—have explained that the diagnosis of PA or PAS excludes contact refusal due to abuse or neglect. It is remarkable that Benjamin et al. misrepresented PA scholarship by attributing opinions to Bernet et al. that are the exact opposite of what was actually said in Bernet et al.:

The diagnosis of parental alienation relational problem should not be used if the child's refusal to have contact with the rejected parent is justifiable, for example, if the child was neglected or abused by that parent.⁴²

Shortly after this book was published, a formal complaint was submitted to the first author of the book, the editor of the series, and the leadership of the APA. The general counsel of APA responded that the authors of *Family Evaluation in Custody Litigation* agreed to change the offensive sentence noted above to the following:

*The concept of PAS assumes that a child's strong alignment with one parent and rejection of the other is often without legitimate justification. Supporters of this concept and syndrome state that its use should be excluded if the child was neglected or abused by that parent (Bernet et al., 2010) though, as we report later in this section, we have seen court cases where a legal argument for parental alienation was successfully made even when abuse was indeed present, with negative effects on the child.*⁴³

Thus, the leadership of APA agreed that the book, as originally published, contained a serious misstatement that required correction. However, the APA only changed the digital version of *Family and Child Custody Litigation*; they said they would correct the hard copies “in all future runs of the book's print edition.”⁴⁴ Also, it is notable that although the APA agreed to correct one sentence of the book, they refused to make any change in other instances of misinformation in the same chapter. The following false or misleading statements continue to be advertised and sold by the APA:

*This syndrome or disorder has been promoted by some (Lorandos, Bernet, & Sauber, 2013; Warshak, 2010), but it is strongly disputed by many others because of the lack of valid and reliable peer-reviewed research regarding PAS/PAD during the last twenty-five years (Bond, 2008; Kelly & Johnston, 2001; Meier, 2009; Walker & Shapiro, 2010; Zorza, 2009).*⁴⁵

In reply, the peer reviewed research regarding PA/PAS was described previously in this article.⁴⁶

*Further, the use of PAS/PAD is now considered inadmissible in a number of courts (Hoult, 2006), as it does not meet the established legal standard for the admissibility of expert testimony (Bond, 2008).*⁴⁷

In reply, this statement is apparently purposefully misleading; in fact, hundreds of trial and appellate courts in the U.S. have admitted and considered testimony regarding PAS or PA.⁴⁸

*In summary, there is no accepted theory or research supporting such a syndrome (PAS) or disorder (PAD), nor the recommendations proposed by their promoters.*⁴⁹

In reply, PA theory has been acknowledged and accepted by the following professional organizations in the United States: the American Academy of Child and Adolescent Psychiatry;⁵⁰ the Association of Family and Conciliation Courts;⁵¹ the American Academy of Pediatrics;⁵² and the American Professional Society on the Abuse of Children.⁵³

*No evaluator should base conclusions or recommendations on this approach.*⁵⁴

In reply, there is clearly a danger that psychologists who read this book will take this false pronouncement as legitimate advice from the APA. Thus, practitioners who follow this advice may ignore or overlook PA when it occurs in families they evaluate. This bad advice from Benjamin et al. and the APA itself may seriously harm children and families in the future who experience PA.

*[L]ittle research evidence exists that demonstrates a parent's ability to successfully program or alienate his or her child against the other parent, especially if that child actually has a good relationship with the supposed alienated parent, nor have any specific techniques been identified that shows how such programming might occur.*⁵⁵

In reply, it is ridiculous to state in a book intended for psychologists that there is “*little research evidence*” regarding programming and brainwashing of children. Psychologists and sociologists have studied this phenomenon—including the suggestibility of children and the reliability of their reports—for about 100 years.⁵⁶

*In these types of cases, whenever a preferred parent speaks poorly about the rejected parent, it is viewed as an alienating behavior.*⁵⁷

In reply, that statement by Benjamin et al. is a straw man argument, i.e., giving the impression of refuting an opponent's argument, while actually refuting an argument that was not presented by that opponent. No knowledgeable advocate of the concept of PA would say, “[w]henever a preferred parent speaks poorly about the rejected parent, it is viewed as an alienating behavior.” Of course, persistent and incessant badmouthing of the target parent would likely be considered an alienating behavior, of which there are many, but that premise was misstated by Benjamin et al.

The APA is a large organization with more than 120,000 members and many components, which may have conflicting opinions regarding PAS/PA, as it does about other difficult topics. Many APA members and components accept the reality and the significance of PA, e.g., in 2012, the APA published *Guidelines for the Practice of Parenting Coordination*. That document does not specifically say “parental alienation,” but it refers to the phenomenon in this way: “[t]he knowledge base regarding children includes the dynamics of complex postseparation situations, such as refusal to visit a parent, parental undermining of the child's relationships with the other parent, relocation of a parent, and the inappropriate involvement of the child in parental disputes.”⁵⁸ It is clear that the *Guidelines* are referring to PA.

Also, in 2015, the APA published the *APA Handbook of Forensic Psychology*, which contains a chapter on “Child Custody and Access,” which has a section with the heading, “Child Alienation.” The chapter authors state, “[o]ver the past twenty-five years, considerable discussion has focused on the dynamics and processes of child alienation. Several different models describe child alienation.”⁵⁹

Finally, it is significant that the APA maintains its own online *Dictionary of Psychology*, which discusses both PAS and PA. The entry explains the eight symptoms of PAS originally identified by Richard Gardner in 1985. The authors of the *APA Dictionary* appear to be critical of PAS, but reasonably positive about PA. They say:

Despite the significant controversy surrounding [parental alienation] syndrome, the more generalized concept of **parental alienation** often is viewed as a legitimate dynamic in many family situations, describing the harm done to a child's security with one caregiver as a result of exposure to another caregiver's unfavorable actions toward or criticism of that person.⁶⁰

While there are several official APA publications that endorse the reality of PA, the book by Benjamin et al. appears to be an outlier. The problem is that even after being notified of numerous errors and misstatements, the APA continues to promote a book with serious misinformation about PA.

VI. U.S. HOUSE OF REPRESENTATIVES

In the summer of 2017, the U.S. House of Representatives considered House Concurrent Resolution 72 (H. Con. Res. 72), a document that referred to “*scientifically unsound theories such as parental alienation syndrome*.” This fragment of significant misinformation was embedded in a long document with many provisions, “expressing the sense of Congress that child safety is the first priority of custody and visitation adjudications, and that State courts should improve adjudications of custody where family violence is alleged.” Almost no citizen (or member of congress) would disagree with the idea that “courts should improve adjudications of custody where family violence is alleged.” However, representatives were invited to sign on to an elaborate piece of legislation with the following provision in the middle of the text:

*Whereas scientifically unsound theories such as parental alienation syndrome, enmeshment, and others are frequently applied to reject parents’ and children’s reports of abuse Now, therefore, be it Resolved by the House of Representatives, that it is the sense of Congress that — (1) child safety is the first priority of custody and parenting adjudications*⁶¹

Several members of the child advocacy organization, PASG, decided to fight H. Con. Res. 72, as it was initially proposed. Although Rep. Patrick Meehan, the original sponsor of the resolution, had a strong record of support with regard to child advocacy and child abuse legislation, he was apparently unaware of the inaccuracies concerning PAS that his resolution contained. The author and a colleague met with the staff of Rep. Meehan at their office in Washington, D.C. We used most of the time to explain the flaw in the resolution and describe our recommended change. We simply recommended that the references to “parental alienation syndrome” and “enmeshment” be deleted from the resolution.

Initially, the resolution was referred to the House Judiciary Committee for consideration, so several members of PASG sent personalized letters and packets of information to all members of that Committee. We invited members of other child advocacy organizations to join in this effort. The resolution was passed from the Judiciary Committee to the entire House of Representatives, where eighty-six members ultimately became co-sponsors. On September 25, 2018, the House of Representatives adopted H. Con. Res. 72 with the modification recommended by PASG. The resolution that was adopted by the House and passed on to the Senate stated:

Whereas scientifically unsound theories are frequently applied to reject parents’ and children’s reports of abuse: Now, therefore, be it Resolved by the House of Representatives, [t]hat it is the sense of Congress that — (1) child safety is the first priority of custody and parenting adjudications⁶²

While a concurrent resolution is a federal action, it is not legislation that ultimately becomes law. Instead, a resolution expresses the opinion of the House of Representatives and the Senate about an important topic. However, it is clear that detractors of PA are highly organized and were hoping for the U.S. Congress to endorse their way of thinking. If Congress enacted the resolution as originally proposed, attorneys and expert witnesses (i.e., PA detractors) would cite the Congressional resolution to argue that testimony regarding PA should be rejected and ignored. Also, PA detractors would likely use the flawed Congressional resolution as a rallying cry for state legislatures to enact laws consistent with the notion that PA theory is “*scientifically unsound*.” If that were to happen, it would harm thousands of children and families in the U.S. for many years.

We do not know who or what organization initially encouraged Rep. Meehan to introduce a resolution that wrongly referred to “*scientifically unsound theories such as parental alienation syndrome*.” However, Joan S. Meier recently cited H. Con. Res. 72 in an amicus brief that discussed “Courts’ Improper Reliance on Alienation Theory.” She said, “[a]lienation theory also harms children when it causes a court to remove them from the parent they trust and feel loved by (the ‘attachment parent’).”⁶³ Then she added, “[i]n response to many of these concerns, the U.S. House of

Representatives recently unanimously adopted House Concurrent Resolution 72, calling on states to improve family court practices to protect children.”⁶⁴ It seems likely that two organizations that have actively campaigned against the use of PA—the Leadership Council on Child Abuse & Interpersonal Violence and the Domestic Violence Legal Empowerment and Appeals Project—instigated and promoted the false information in the original version of H. Con. Res. 72. Meier has leadership roles in both of those organizations.

VII. MISINFORMATION PROLIFERATION

This article has summarized only a few examples of misinformation regarding PA, with a discussion of attempts to correct what had been published in the professional literature intended for mental health and legal professionals. There has been an explosion of false statements regarding PA, so here are some additional examples in chronological order:

- National Council of Juvenile and Family Court Judges (2006): “*The discredited ‘diagnosis’ of ‘PAS’ (or allegation of ‘parental alienation’), quite apart from its scientific invalidity, inappropriately asks the court to assume that the children’s behaviors and attitudes toward the parent who claims to be ‘alienated’ have no grounding in reality.*”⁶⁵
- Tom Burton, General Counsel of Justice for Children (2009): “*Parental alienation syndrome has been debunked, disproven and discredited by every major group and association involved with child abuse cases.*”⁶⁶
- Paul Fink (2010): PAS is a “*bit of junk science invented by ... Dr. Richard A. Gardner.*” Also, Fink said that father’s rights groups, “*who don’t like to be interfered with when they are sexually abusing their children,*” petitioned the DSM-5 Task Force to include PAS in DSM-5.⁶⁷
- Lenore E. Walker and David L. Shapiro (2010): “*Gardner had no empirical data to support this theory [of PAS], and in fact, self-published his ideas.*”⁶⁸
- Joan S. Meier (2013): “*[T]here is actually no empirical research validating the existence of parental alienation syndrome.*”⁶⁹
- Holly Smith (2016): “*This Note proposes that parties involved in child custody disputes should be educated on the junk science of parental alienation syndrome*”⁷⁰
- *Domestic Abuse Guidebook for Wisconsin Guardians Ad Litem* (2017): “*PAS has been discredited by the psychiatric profession, and has been routinely deemed by courts and mental health professionals as inadmissible in the courtroom in this context.*”⁷¹
- Cara Tabachnick (2017): “*Just as research has not definitively proved the validity of parental alienation, it has not shown that family reunification programs work.*”⁷²
- Jean Mercer (2019): “*PA proponents ... have nevertheless assumed that [visitation resistance or refusal] (without ‘justified’ causes like physical abuse) is in itself evidence that the preferred parent has carried out a campaign of denigration against the nonpreferred parent.*”⁷³

All of these statements are false and can be refuted with documents published by professional organizations, empirical research published in peer-reviewed journals, and other authoritative resources. It seems like the believers in PA and the detractors of PA are living in two different universes. It is important to understand why this level of polarization arises in the first place and prevails over time.

A. HIGH-CONFLICT PARENTS LEAD TO POLARIZED PROFESSIONALS

The most obvious explanation is that the conflict between domestic violence advocates and PA advocates is derived from the high conflict that sometimes occurs between separating and divorcing

parents. Perhaps at some point an attorney or a mental health professional became affiliated with a victim of domestic violence, so they all adopted the same interpretation of events and became advocates regarding domestic violence. On the other hand, perhaps a different attorney or mental health professional became affiliated with a targeted parent, a victim of parental alienating behaviors, so these individuals adopted their own interpretation of events and became advocates regarding PA. This is part of the explanation of the polarization between the domestic violence lobby and the PA lobby, but it is likely the story is more complicated.

B. FEMINIST CRITICS OF PARENTAL ALIENATION

In an important article, Deirdre C. Rand characterized the groups of critics who oppose the concept of PAS/PA. She described one of the groups as individuals who “identify themselves as advocates for abused women and children.”⁷⁴ Rand explained:

The feminist and child advocate critics are concerned that PAS is being used against mothers, and relied on by courts as rationale for giving custody to abusive fathers. ... The feminist and child advocates tend to be strong believers in the idea that “children never lie about abuse.” They tend to be in favor of leading and suggestive interviews when abuse is suspected based on the belief that children are reluctant to disclose. ... These critics deny that a parent can induce a child to make, or go along with, false allegations of abuse against the other parent.⁷⁵

Rand indicated that the feminist and child advocate critics included Cheri L. Wood, Danielle Isman, Carol S. Bruch, Robert Geffner, Steve Ambrose, Joyanna Silberg, Paul Fink, and others. Although Rand described a rather bleak, internecine discourse regarding PA, she ended the article on a positive note. She specifically cited the special issue of *Family Court Review* that addressed “Alienated Children in Divorce and Separation,” which was published in 2010. Rand said, “[t]he guest editors, Barbara Fidler and Nicholas Balas [sic], bring a fresh perspective and there are contributions from ‘both sides of the aisle.’”⁷⁶

C. COGNITIVE DISSONANCE

In terms of classical psychological theory, the most obvious explanation for the polarization pervading PA scholarship is *cognitive dissonance*, a well-known mental phenomenon that has been extensively studied.⁷⁷ Cognitive dissonance is an uncomfortable feeling or tension that is caused by holding conflicting ideas simultaneously. People are highly motivated to reduce or eliminate the tension or stress caused by cognitive dissonance. There are several ways to reduce dissonance, such as totally adopting one attitude or belief, and totally rejecting the opposing attitude or belief. Some writers and practitioners may believe there is serious conflict between domestic violence theory (e.g., “always believe the children who describe abuse”) and PA theory (e.g., “sometimes children are not telling the truth when they describe abuse”). Since the stakes are very high in these cases—in both clinical and legal terms—it may be very hard for some people to sincerely adopt, “generally believe the children,” and also, “sometimes children are manipulated to make false allegations.” Since this seeming contradiction creates tension and stress, the principle of cognitive dissonance might cause some individuals to avoid dissonance by gravitating to one side of the discussion and doubling down on the premises, “*always* believe the children,” and, “ignore the possibility of parental alienation.” Of course, this is not an either/or situation; most observers would agree that child abuse occurs and PA also occurs.

D. PARTISANSHIP AND THE PARTISAN BRAIN

In recent years, the phenomenon of cognitive dissonance has become one component of the much broader field of study of *partisanship*. In the general sense, partisanship refers to prejudice or

bias in favor of a particular cause; more specifically, it commonly refers to one's preference for a particular political party. The concept of "the partisan brain" conveys that the inclinations of humans to pick sides "have a strong genetic basis, emerge early in life, and manifest in brain structure."⁷⁸ In other words, there were evolutionary forces that prompted early humans to join one group or the other, rather than be left alone in the midst of tribal warfare. Nam, Jost, and Van Bavel—scholars who have studied the partisan brain—have applied their theory to American politics:

Increasingly, ideological polarization is the norm, and little or no common ground exists between liberals and conservatives when it comes to social and economic issues such as tax policy, the debt ceiling, health care reform, gay marriage, and climate change [T]here is growing evidence that differences between liberals and conservatives are shaped by psychological variables having to do with personality, cognition, emotion, and motivation⁷⁹

Nam et al. pointed out that a common method for minimizing cognitive dissonance is *selective exposure*, i.e., seeking out and accepting information that is compatible with one's preexisting beliefs and avoiding exposure to information that is not compatible. It seems likely that selective exposure helps to explain the destructive polarization that occurs between mental health and legal professionals who are concerned about domestic violence and those who are concerned about PA.

VIII. RECOMMENDATIONS FOR BIPARTISANSHIP

It is important to consider possible ways to reduce the partisanship that damages attempts to research important aspects of PA and to educate mental health and legal professionals regarding this topic. The approach taken in this article—itemizing examples of misinformation and refuting them piece by piece—is perhaps the least efficient way to approach this task. Here are strategies that might reduce the polarization in this field:

1. The scholars who have studied the partisan brain have also made suggestions for reducing biases related to partisanship. For example, Van Bavel and Pereira recommend having access to factual information in order to create accurate beliefs regarding a topic.⁸⁰ They suggest that increasing the level of accuracy reduces partisan bias. With regard to our topic of interest, this means encouraging well designed qualitative and quantitative research to establish the causes of PA, accurate ways to diagnose it, and suitable interventions.
2. Van Bavel and Pereira also say that "reducing worldview or self-esteem threats by affirming an individual can open their mind to otherwise threatening information."⁸¹ In terms of the issues raised in this article, this suggests that the writers who are very concerned about PA should make it clear they are also concerned about domestic violence—and the writers who are very concerned about domestic violence should reciprocate.
3. Furthermore, partisanship theory indicates, "[p]rofessional training and guidelines for evaluating evidence fairly can reduce the effect of personal values. For example, judges receive training to make legal determinations that are unrelated to their political values, unlike members of the general public."⁸² Both forensic evaluators and lawyers should learn—during their training and also in continuing education—to put aside their biases and focus on facts and data. This topic has been addressed specifically with regard to forensic psychologists, i.e., Neal and Brodsky found that, "evaluators perceived themselves as less vulnerable to bias than their colleagues," which is called the "bias blind spot."⁸³ Neal and Brodsky identified strategies to reduce risk, including: "receiving explicit didactic training about objectivity," "consulting with colleagues," "using structured evaluation methods," and "considering alternative hypotheses."⁸⁴
4. Another strategy to reduce polarization is to search for common ground, which involves acknowledging that both sides of the dispute have shared concerns. For example, writers

and speakers can emphasize that both men and women are victims of parental alienation. Also, domestic violence advocates and PA advocates are both concerned about distinguishing true and false allegations; domestic violence advocates and PA advocates are both concerned about identifying and securing the best interests of children. The author previously wrote: At the risk of oversimplification, I say: Domestic violence is a serious problem in many families, but sometimes there are false allegations of domestic violence; and PA is a serious problem in many families, but sometimes there are false allegations of PA. It is incorrect to minimize either issue or to dismiss the topic in a preemptory manner by saying that it is junk science or lacks empirical evidence.⁸⁵

5. It probably would be productive for representatives from both sides of the dispute to work together on research projects or on writing tasks. For example, in 2010, Kelly⁸⁶ and Warshak and Otis⁸⁷ proposed a large-scale research project regarding PA with a consortium of researchers with different points of view and different hypotheses, but using common methods and research instruments. Also, the development of this special issue of *Family Court Review* is an opportunity for the authors to read each other's material, give constructive feedback, listen carefully, and try to understand each person's point of view.
6. Collaboration with opponents can also take the form of developing an article or a set of practice guidelines together. Most writers in this field distinguish *alienation* (rejection of a parent without a good reason) and *estrangement* (rejection of a parent for a good reason, such as a history of abuse or very deficient parenting). Also, everyone would agree that it is important in individual cases to distinguish alienation from estrangement, but there is disagreement on how to do that. It would be enlightening for domestic violence advocates and PA advocates to collaborate in creating protocols for distinguishing alienation and estrangement. In fact, several members of PASG proposed to do that with the leadership of the American Professional Association on the Abuse of Children (APSAC), whose members tend to be domestic violence advocates. Ultimately, the two organizations did not agree to take on that joint project.
7. Finally, tolerance is essential. In scientific and scholarly discourse, it is bad form to try to demolish those who disagree. PASG has adopted the "big tent" approach regarding our membership. It is obvious that PASG members do not agree on every aspect of PA theory, but we insist on civility and respectfulness. We know that all members have the ultimate goals of understanding the causes of PA, how to prevent it, how to identify it, and what to do about it.

It is unclear whether any or all of these proposals would solve the problem presented in this paper, i.e., the rampant proliferation of false information regarding PA. It may be that the sides are too entrenched to accomplish significant bipartisan activities together. At the present time, the bottom line is that we live in an age of widespread misinformation. Clinicians, forensic practitioners, and legal professionals should remain vigilant when they read articles or listen to presentations about topics that might be considered controversial.

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NOTES

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